

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #08	CCRB Case #: 201706813	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 07/21/2017 9:15 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/21/2019	Precinct: 120		
Date/Time CV Reported Thu, 08/17/2017 4:15 PM	CV Reported At: Office of City Council member	How CV Reported: In-person	Date/Time Received at CCRB Thu, 08/17/2017 4:15 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adrian Klusek	07981	956024	120 PCT
2. Officers			120 PCT
3. POM John Wilkinson	00383	962909	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Caruso	11324	955793	120 PCT
2. POM Casey Engelhardt	15088	955902	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM John Wilkinson	Abuse: Police Officer John Wilkinson stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek frisked § 87(2)(b)	C . Exonerated
D . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek searched § 87(2)(b)	D . Exonerated
E . POM John Wilkinson	Abuse: Police Officer John Wilkinson frisked § 87(2)(b)	E . Exonerated
F . POM John Wilkinson	Abuse: Police Officer John Wilkinson searched § 87(2)(b)	F . Exonerated
G . POM Adrian Klusek	Abuse: Police Officer Adrian Klusek searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Exonerated
H . POM John Wilkinson	Abuse: Police Officer John Wilkinson searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Exonerated
I . Officers	Abuse: Officers searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	I . Exonerated
J . POM Adrian Klusek	Discourtesy: Police Officer Adrian Klusek spoke discourteously to § 87(2)(b)	J . Unfounded
K . POM Adrian Klusek	Off. Language: Police Officer Adrian Klusek made remarks to § 87(2)(b) based upon the perceived mental disability of § 87(2)(b)	K . Unfounded

Case Summary

On August 17, 2017, § 87(2)(b) and § 87(2)(b) filed the following complaint in person at the office of Councilwoman Debi Rose.

On July 21, 2017, at approximately 9:15 p.m., in front of § 87(2)(b) in Staten Island, Police Officer Adrian Klusek and Police Officer John Wilkinson of the 120th Precinct stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants after § 87(2)(b) allegedly failed to signal (**Allegations A & B: Abuse of Authority, unsubstantiated**). § 87(2)(b) and her young son had recently exited the vehicle, and she witnessed a portion of the incident. Upon approaching the vehicle, the officers observed loose pills in the vehicle's center console which they believed were contraband. PO Klusek allegedly frisked and searched § 87(2)(b) and PO Wilkinson frisked and searched § 87(2)(b) (**Allegations C-F: Abuse of Authority, exonerated**). PO Klusek found additional pills on § 87(2)(b)'s person. PO Klusek searched § 87(2)(b)'s vehicle, and PO Wilkinson and other officers also allegedly did so (**Allegations G-I: Abuse of Authority, exonerated**). PO Klusek also allegedly spoke discourteously to § 87(2)(b) and made remarks to him based upon his perceived mental disability (**Allegations J & K: Discourtesy & Offensive Language, unfounded**).

The officers arrested § 87(2)(b) (BR01). They took no enforcement action with regard to § 87(2)(b).

The investigation did not obtain any video footage.

Potential Issues

§ 87(2)(b) filed two other complaints at the same time that he filed this complaint § 87(2)(b). In all three incidents, officers stopped a vehicle containing § 87(2)(b) and found narcotics on his person or in the vehicle. § 87(2)(b) steadfastly denied that officers found any contraband in any of the incidents. He claimed that multiple officers were present at more than one of the incidents, and implied that officers were specifically targeting him with false criminal allegations. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

- **Allegation (A) Abuse of Authority: Police Officer Adrian Klusek stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**
Allegation (B) Abuse of Authority: Police Officer John Wilkinson stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

During his in-person interview, § 87(2)(b) recounted that he and § 87(2)(b) were driving on § 87(2)(b) when § 87(2)(b) flagged them down and asked them to drive her and her son to her mother's residence at § 87(2)(b) (BR02). During a later phone statement, § 87(2)(b) elaborated that he and § 87(2)(b) stopped at a store on § 87(2)(b) and § 87(2)(b) went inside. § 87(2)(b) and her son exited the store, and eventually all four drove away in § 87(2)(b).

§ 87(2)(b)'s vehicle (BR03). § 87(2)(b) specifically recounted driving south on § 87(2)(b) turning right onto § 87(2)(b) turning right again onto § 87(2)(b) turning left onto § 87(2)(b) and finally turning left onto § 87(2)(b). He denied that he ever failed to signal during this time. He denied that any officer ever told him that he had committed a traffic infraction.

§ 87(2)(b) provided a phone statement and an in-person statement (BR04; BR05). She denied that § 87(2)(b) picked her up at a store. She did not describe the specific route that § 87(2)(b) followed while driving to her mother's house, and did not specifically address whether he ever failed to signal. She recounted that, at some point, § 87(2)(b) and § 87(2)(b) remarked that an unmarked vehicle appeared to be following them.

The investigation contacted § 87(2)(b) by phone, and he refused to provide any statements to the CCRB about the incident.

PO Klusek was driving the unmarked vehicle at the time of the incident, and he recounted that he was driving on § 87(2)(b) near the intersection with § 87(2)(b) (BR06). As he turned onto § 87(2)(b), PO Klusek saw a vehicle up ahead readying to turn left onto § 87(2)(b). The vehicle properly signaled for the left turn, but then quickly turned right from § 87(2)(b) onto § 87(2)(b) without signaling. PO Klusek decided to stop the vehicle for that VTL infraction. He denied that he made had any additional suspicions of the vehicle before stopping it. He had no recollection of following the vehicle for an extended period of time.

§ 87(2)(b) was arrested on charges of § 87(2)(b)

§ 87(2)(b) The arrest report narrative states that § 87(2)(b) was driving northbound on § 87(2)(b) and failed to signal when he turned eastbound onto § 87(2)(b). In addition, the VTL statute cited in the arrest report pertains to using a turn signal from a parked position, and is therefore not suitable for the infraction PO Klusek claimed to have seen. Significantly, PO Klusek was not the arresting officer and did not personally prepare the arrest report. During his CCRB interview, PO Klusek explained that PO Hicks, an officer who was not on scene, was assigned to take the arrest resulting from the incident due to administrative necessity. PO Klusek confirmed that he relayed information to PO Hicks to enable him to accurately prepare the arrest report.

PO Klusek was shown the arrest report during his CCRB interview, and he was asked specifically whether the narrative in the report was accurate with regard to the VTL infraction § 87(2)(b) committed. PO Klusek replied, "Well, if it's in here, it's gotta be correct." The investigator asked PO Klusek to state specifically whether he observed § 87(2)(b)'s vehicle make the infraction as alleged on the arrest report, and he replied, "It was the one onto § 87(2)(b). I know that much. It was a failure to signal. Whether we were driving on § 87(2)(b)—you know, my recollection is § 87(2)(b) on § 87(2)(b) seeing him." PO Klusek confirmed that he only saw § 87(2)(b) fail to signal once, and denied that he was ever following § 87(2)(b)'s vehicle on § 87(2)(b).

At his CCRB interview, PO Wilkinson could not recall why he and PO Klusek stopped § 87(2)(b)'s vehicle, except that he believed it was for a VTL infraction (BR07).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegations A & B** be closed as **unsubstantiated**.

- **Allegation (C) Abuse of Authority: Police Officer Adrian Klusek frisked** § 87(2)(b)
Allegation (D) Abuse of Authority: Police Officer Adrian Klusek searched § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer John Wilkinson frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer John Wilkinson searched § 87(2)(b)

It is undisputed that PO Klusek searched § 87(2)(b) and that PO Wilkinson frisked and searched § 87(2)(b)

§ 87(2)(b) recounted that PO Klusek instructed him and § 87(2)(b) to exit the vehicle and to go to the rear of the vehicle. Once at the rear, PO Klusek patted the outside of § 87(2)(b)'s pockets immediately before entering his pockets. PO Wilkinson performed the same actions on § 87(2)(b). During the CCRB interview, § 87(2)(b) denied that he had any drugs on his person. § 87(2)(b) also said that the cup-holders in the center console contained “probably just some change” or “basic stuff.”

§ 87(2)(b) initially recounted that an officer claimed to have found ten prescription pills in the center console of his vehicle, but then later denied that the officer ever told him how many pills he had found or where he found them. He also denied that the officer ever showed him any pills, and he claimed that he told the officer that he did not know anything about any pills. He denied during the CCRB interview that there were any pills in his vehicle. Although § 87(2)(b) claimed that the officer who asked him about pills was a new officer who arrived on scene after the incident began, the investigation determined that PO Klusek was the officer who questioned him about the pills in his vehicle.

§ 87(2)(g)

She also claimed that an officer searching in the backseat of § 87(2)(b)'s vehicle emerged holding a clear plastic bag containing approximately 100 loose pills. § 87(2)(g)

PO Klusek recounted that, after obtaining § 87(2)(b)'s license, he saw a number of loose pills in the center console. He initially described the pills as having been located in a cup-holder. However, after viewing an image of the center console of a vehicle with the same year, make, and model as § 87(2)(b)'s vehicle, PO Klusek pointed out that the pills were actually in a small, somewhat rectangular tray beside the cup-holder.

In his initial statement, PO Klusek said the pills were similar to pills he had encountered in previous arrests, and he said that they looked like Oxycodone. He later explained that he saw one pill in the center console which appeared to be Oxycodone. It was white and shaped like an elongated circle. There were also a number of green pills. Although PO Klusek had initially said that all the pills he observed had a shape, size, and color that were similar to Oxycodone and

indicative of narcotics, he later said that the green pills were “completely unfamiliar” and that he only determined they were alleged MDMA after investigating the stamps on them and comparing them to photographs of other pills.

PO Klusek initially said that he could not “definitively” determine what the pills were from his visual observation of them in the center console. However, he later said, “They looked like Oxycodone, so with that you already have the arrest for possession of narcotics.” He affirmed that he believed he had probable cause for an arrest based solely upon his visual observation of the pills in the center console, and said that he intended to arrest § 87(2)(b) for possessing the pills even before he instructed § 87(2)(b) to exit the vehicle. PO Klusek also noted that he did not see any pill containers in the vehicle, and that it seemed “very weird” for someone to carry loose pills. He said that he had narcotics training at the Academy, that he has made 5-10 previous arrests for narcotics, and that he has studied a large poster in the stationhouse with images of many types of contraband pills.

When § 87(2)(b) exited the vehicle, PO Klusek saw another white pill fall from § 87(2)(b)'s pants pocket to the driver's seat. PO Klusek handcuffed § 87(2)(b) searched him immediately without frisking him first, and found more loose white pills scattered amongst the currency inside § 87(2)(b)'s right pants pocket. After PO Klusek handcuffed and searched § 87(2)(b) § 87(2)(b) said that the pills belonged to him. As a result, the officers did not arrest § 87(2)(b).

PO Klusek did not recount ever frisking § 87(2)(b). He first said that PO Wilkinson frisked § 87(2)(b) later specified that he did not actually see PO Wilkinson frisk § 87(2)(b) and finally said that he did, in fact, see PO Wilkinson “pat down” § 87(2)(b).

PO Wilkinson recounted that he approached the front passenger window and recognized § 87(2)(b) because he had seen § 87(2)(b)'s photograph on “firearm recidivist” posters in the stationhouse. These posters indicate that the individuals pictured have been found with or otherwise involved with firearms on at least two previous occasions. PO Klusek alerted PO Wilkinson to the presence of loose pills in the center console when they were standing on either side of the vehicle. PO Wilkinson then observed the pills himself. PO Wilkinson recounted only seeing green pills in the center console. He has received Academy narcotics training, and he has studied the large posters in the stationhouse which show examples of various contraband pills. The green pills looked similar to pills he had seen on these posters.

Immediately after § 87(2)(b) exited the vehicle, PO Wilkinson frisked his entire body. He suspected that § 87(2)(b) might have been armed because § 87(2)(b) was on the “firearm recidivist” posters. PO Wilkinson specified that the presence of the pills in the vehicle did not contribute to his suspicion that § 87(2)(b) was armed. PO Wilkinson did not provide any additional reasons for frisking § 87(2)(b). PO Wilkinson knew that he searched § 87(2)(b) at some point, but he was not certain when he did so. He believed it was after the pills had been positively identified as a controlled substance. PO Wilkinson knew that PO Klusek found additional pills on § 87(2)(b)'s person, but he never saw these pills. PO Wilkinson also recounted that, though he and PO Klusek had probable cause to arrest both § 87(2)(b) and § 87(2)(b) they used their discretion and let § 87(2)(b) leave because § 87(2)(b) eventually admitted that the pills belonged to him.

§ 87(2)(g)

§ 87(2)(g)

New York Public Health Law §3345 makes it unlawful for an ultimate user of controlled substances to possess such substance outside of the original container in which it was dispensed, except for the purpose of current use by the person for whom such substance was prescribed (BR08). Under the plain view exception to the warrant requirement, a police officer may seize evidence in plain view when the incriminating nature of the evidence is immediately apparent. For an object's criminal nature to be immediately apparent, a reasonable officer must conclude that there is probable cause to believe that the item constitutes evidence of a crime without conducting some further search of the object. A trained officer's observation of a controlled substance possessed outside of its original container makes the incriminating nature of the pills readily apparent. Deanda v. Hicks, 137 F. Supp. 3d 543 (S.D.N.Y 2015) (BR09).

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegations C-F** be closed as **exonerated**.

- **Allegation (G) Abuse of Authority: Police Officer Adrian Klusek searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.**
Allegation (H) Abuse of Authority: Police Officer John Wilkinson searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.
Allegation (I) Abuse of Authority: Officers searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Klusek searched § 87(2)(b)'s vehicle.

During his in-person statement, § 87(2)(b) claimed that approximately 3-4 additional unmarked vehicles arrived on scene during the incident, and that two or three officers from those vehicles searched inside his car. He could not describe these officers at all, except that they were white men. He was able to describe one of the officers from the new vehicles as a stocky man in his late 40s or early 50s who seemed to be a supervisor. § 87(2)(b) explicitly said that this supervisory officer did not search his vehicle.

During a later phone statement, § 87(2)(b) claimed that the supervisory officer did, in fact, search his vehicle. He also specifically recalled seeing PO Wilkinson enter his vehicle.

In her phone statement, § 87(2)(b) erroneously claimed that there were four officers in PO Klusek and PO Wilkinson's vehicle. She claimed that multiple unspecified officers "ransacked" § 87(2)(b)'s vehicle for an extended period of time. She denied that any additional officers from new vehicles ever entered his vehicle.

§ 87(2)(g)

§ 87(2)(b). She ultimately said that multiple officers searched the vehicle, but only specifically recounted that PO Klusek did so.

PO Klusek admitted that he searched § 87(2)(b)'s vehicle after handcuffing § 87(2)(b). He described himself as the officer who "primarily" searched § 87(2)(b)'s vehicle. He recovered the pills from the center console, and he searched the entire passenger cabin because he had found

narcotics inside. PO Wilkinson did not specify during his CCRB interview whether he ever entered § 87(2)(b)'s vehicle.

PO Klusek recalled that two additional officers stopped at the scene but did not exit their vehicle. PO Wilkinson could not recall if any additional officers ever arrived. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

New York Public Health Law §3345 makes it unlawful for an ultimate user of controlled substances to possess such substance outside of the original container in which it was dispensed, except for the purpose of current use by the person for whom such substance was prescribed (BR08). Under the plain view exception to the warrant requirement, a police officer may seize evidence in plain view when the incriminating nature of the evidence is immediately apparent. For an object's criminal nature to be immediately apparent, a reasonable officer must conclude that there is probable cause to believe that the item constitutes evidence of a crime without conducting some further search of the object. A trained officer's observation of a controlled substance possessed outside of its original container makes the incriminating nature of the pills readily apparent. Deanda v. Hicks, 137 F. Supp. 3d 543 (S.D.N.Y 2015) (BR09). If an officer observes contraband in plain view inside a vehicle, he may enter the vehicle and recover the contraband. People v. Jackson, 40 A.D.3d 280 (2007) (BR10).

§ 87(2)(g)

§ 87(2)(b)

Therefore it is recommended that **Allegations G-I** be closed as exonerated.

- **Allegation (J) Discourtesy: Police Officer Adrian Klusek spoke discourteously to** § 87(2)(b)

Allegation (K) Offensive Language: Police Officer Adrian Klusek made remarks to § 87(2)(b)
based upon the perceived mental disability of § 87(2)(b)

§ 87(2)(b) never alleged that any officer used profanity or offensive language during the incident. He did recount that an officer eventually asked him, "What kind of pills are these?" but he denied that the officer ever actually showed him any pills. He recounted that he told the officer he did not know anything about any pills. § 87(2)(g)

During her phone statement, § 87(2)(b) claimed that four officers exited from the vehicle which stopped § 87(2)(b)'s vehicle. One of these officers, a heavyset man with facial hair who was the shortest of the officers, eventually searched in the backseat of § 87(2)(b)'s vehicle. The officer emerged holding a clear plastic bag containing what appeared to be at least 100 pills. The officer allegedly presented the pills to § 87(2)(b) and asked, "What the fuck are you gonna do with these pills?" § 87(2)(b) replied in substance, "You know, maybe give it to the ladies." The officer replied, "Who the fuck are you, Bill Cosby?" The officer also said something like, "You gotta be fucking retarded."

During her in-person statement, § 87(2)(b) reiterated the allegations but attributed them to a different officer. She now recounted that only two officers exited the unmarked vehicle. She described the officer who made the alleged statements as being the shorter of the two officers. As

PO Klusek is shorter than PO Wilkinson, and PO Klusek recounted being the officer who questioned § 87(2)(b) about the pills, the investigation determined that he was the subject officer.

During her in-person statement, § 87(2)(b) first recounted only hearing PO Klusek ask § 87(2)(b) “What are these then?” She only alleged that the officer used profanity when asking this question after being reminded that she had previously made such an allegation in her phone statement. She now insisted that PO Klusek used profanity when asking the question, but she could not recall his exact words. § 87(2)(b) answered by saying the pills were “for the ladies” or “for the girls.” Similarly, § 87(2)(b) did not spontaneously allege that PO Klusek used the word “retarded” until being specifically reminded that she had done so during her phone statement. § 87(2)(b) now recounted hearing PO Klusek say something to the effect of, “With that amount of pills, you gotta be fucking retarded.”

§ 87(2)(b) volunteered her belief that § 87(2)(b) has some type of mental disability, but could only say that § 87(2)(b) was “a little slower,” “really not all there,” and could not read as well as other children when he was younger.

PO Klusek denied that he made any of the alleged statements. He recounted that, after having § 87(2)(b) exit the vehicle, he asked § 87(2)(b) to identify the pills. § 87(2)(b) replied, “Don’t worry about it. They’re my pills.” PO Klusek asked him, “Okay, what about the green ones?” § 87(2)(b) replied, “That’s the ones that I give to the girls for fun.” PO Klusek responded, “Okay, cool.” PO Klusek denied that he ever found any pills in the vehicle that were inside any type of bag or container.

PO Wilkinson also recounted that § 87(2)(b) eventually acknowledged that the pills belonged to him. He never heard § 87(2)(b) make the remark about giving the pills to women, and he denied hearing PO Klusek make any of the alleged statements.

§ 87(2)(g)

Therefore it is recommended that **Allegations J & K** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party (BR11). She is also a complainant-witness or reporting non-witness in two additional CCRB complaints she filed with § 87(2)(b) at the same time as she filed this complaint, which are detailed in the Potential Issues section.
- This is the second CCRB complaint to which § 87(2)(b) has been a party. He is also a complainant-victim in two additional CCRB complaints he filed at the same time as he filed this complaint, which are detailed in the Potential Issues section (BR11).
- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in two allegations (BR11):
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party. He is a victim in one of the additional complaints filed by § 87(2)(b) and § 87(2)(b) (BR11).

- § 87(2)(g)

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Squad No.: 8

Investigator: Inv. Daniel Giansante

Print Title & Name

Date

Squad Leader:

Print Title & Name

Date _____

Reviewer: _____

Print Title & Name

Date _____